

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
RUTH ROSAS, JORGE ROSAS, CHRISTINA ROSAS and
BETSY CAMILO,

SUMMONS

Plaintiffs,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. FRANK LUCIA, P.O. AUSTIN
DENIO, P.O. BRIAN CALORE, P.O. JOSEPH MURRAY
and OFFICER[S] JOHN and JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

The basis of venue and
CPLR 504 (3)

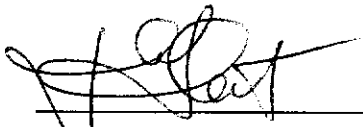
Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

July 12, 2012


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiffs

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

BRONX COUNTY
CLERK

To: **12 JUL 12 PM 3:42**
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

RECEIVED

P.O. Frank Lucia, Shield 003932, P.O. Austin Denio, Shield 25069, P.O. Brian Calore, Shield 19204,
P.O. Joseph Murray, Shield 006464
48th Precinct, 450 Cross Bronx Expressway, Bronx NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RUTH ROSAS, JORGE ROSAS, CHRISTINA ROSAS and
BETSY CAMILO,

Index No.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. FRANK LUCIA, P.O. AUSTIN
DENIO, P.O. BRIAN CALORE, P.O. JOSEPH MURRAY,
and OFFICER[S] JOHN AND JAMES DOE, names being
fictitious and meant to designate additionaloffending
officers,

Defendants.

-----X

Plaintiffs, by their attorney, **Jonathan L. Gleit, Esq.**, complaining of the

Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFFS RUTH ROSAS, JORGE ROSAS,
CHRISTINA ROSAS and BETSY CAMILO

1. At the time of the commencement of this action, plaintiffs RUTH ROSAS, JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO were and still are residents of the County of Bronx, City and State of New York.

2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about June 6, 2011, P.O. FRANK LUCIA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about June 6, 2011, at approximately 7 P.M., P.O. FRANK LUCIA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about June 6, 2011, P.O. AUSTIN DENIO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about June 6, 2011, at approximately 7 P.M., P.O. AUSTIN DENIO was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about June 6, 2011, P.O. BRIAN CALORE was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about June 6, 2011, at approximately 7 P.M., P.O. BRIAN CALORE was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about June 6, 2011, P.O. JOSEPH MURRAY was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

12. That on and about June 6, 2011, at approximately 7 P.M., P.O. JOSEPH MURRAY was working and acting within the scope of his employment as a Police Officer, and under the color of law.

13. That on and about May 18, 2011 and June 6, 2011, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

14. That on and about May 18, 2011 at approximately 11 A.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law

15. That on and about June 6, 2011 at approximately 7 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

16. That on or about May 18, 2011 at approximately 11 A.M., at 2071 Vyse Avenue, Bronx, New York, officers of the 48th Precinct wrongfully and forcefully entered apartment No. 3 thereof without warrant, proper authority, privilege or justification, having no reason in law or in fact to enter said premises.

17. That on or about May 18, 2011 at approximately 11 A.M., at 2071 Vyse Avenue, Bronx, New York, officers of the 48th Precinct wrongfully and forcefully detained RUTH ROSAS and JORGE ROSAS without proper authority, privilege or justification, having no reason in law or in fact to enter said premises.

18. That on May 18, 2011 at approximately 11 A.M officers of the 48th Precinct intended and did confine RUTH ROSAS and JORGE ROSAS.

19. That plaintiffs RUTH ROSAS and JORGE ROSAS were conscious of their confinement.

20. That plaintiffs RUTH ROSAS and JORGE ROSAS did not consent to their confinement.

21. That the confinement of the plaintiffs RUTH ROSAS and JORGE ROSAS was without warrant and was not otherwise privileged.

22. That during the confinement of RUTH ROSAS, the defendants utilized unreasonable, unnecessary, unjustified excessive force.

23. That on or about June 6, 2011 at approximately 7 P.M., at 2071 Vyse Avenue, Bronx, New York, the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO were improperly arrested, searched and confined without proper authority, privilege or justification, having no reason in law or in fact to arrest, search or confine JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO.

24. That the defendants, their agents, servants and/or employees arrested and confined the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO without any basis in law or fact and without reasonable, probable or just cause , justification or privilege.

25. That the defendants, their agents, servants and/or employees arrested the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

26. That the defendants P.O. FRANK LUCIA, P.O. AUSTIN DENIO, P.O. BRIAN CALORE, P.O. JOSEPH MURRAY, and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO thereby causing them to suffer an unlawful seizure of their persons and property.

27. That defendants, their agents, servants and/or employees continued to prosecute plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO and deny and threaten their freedom after they knew, or should have known, they were innocent of all charges being alleged against them.

28. That all criminal charges brought against plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO, which were brought under docket number 2011BX032052 for JORGE ROSAS, and 20011BX032053 for CHRISTINA ROSAS and 2011BX032051 for BETSY CAMILO in the Bronx Supreme Court, Criminal Division, regarding the incidents of June 6, 2011, were dismissed by Hon. Nicholas J. Iacovetta, an Acting Justice of the Supreme Court, on April 4, 2012 and the criminal proceedings were terminated in plaintiffs' favor.

29. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecutions of JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO.

30. As a result of the malicious prosecutions, plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO were deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of unjust criminal prosecutions, and were otherwise damaged and injured and forced to defend their liberty for a period of over ten months.

31. That the defendants, their agents, servants and/or employees unlawfully and without privilege, arrested, intended to and did detain and confine, imprisoned and searched the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO and took their property without any basis in law or fact, and plaintiffs being aware of their unlawful confinement without their consent, were thereby caused freight, shock, emotional distress and physical consequences.

32. That during the unlawful arrest of plaintiff BETSY CAMILO, defendants utilized excessive, unnecessary and unjustified force.

33. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and to subjugate minority population without reprimand to the offending officers. Said policy and procedure of having arrest quotas or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that narcotics

officers were expected to make certain arrest goals. Said productivity goals lead to a practice and procedure of, for instance, arresting all persons at a specific location when individualized reasonable or probable cause does not exist. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein. Furthermore defendants had a policy and procedure of arresting persons for such charges as resisting arrest or obstructing governmental administration or disorderly conduct in ill fated attempts at justifying defendants' unlawful arrests of persons and unnecessary unjustified excessive force and without individualized reasonable or probable cause of such charges, and is demonstrated by multiple individuals have been subject to the same unjustified and fabricated charges, to wit, as a sample and small example: ESHAWN SUTTON was wrongfully subject to similar charges after being assaulted by P.O. JOEY RODRIGUEZ on or about August 17, 2010 at approximately 1:55 P.M., in front of 500 East 165th Street, Bronx, New York ; ARAMIS RODRIGUEZ was wrongfully subject to similar charges after being assaulted by Det. LISANDRO RIVERA on or about April 10, 2009 at

approximately 2:30 P.M., at the southeast corner of Faile Street and Westchester Ave. ,
Bronx, New York; JUAN VALDIVIA was wrongfully subject to similar charges after
being assaulted by P.O. JAIRO GONZALEZARANGO and P.O. ROBERT GAZSY on or
about January 16, 2010 at approximately 7:15 P.M., at 106 West 143rd Street, New York,
New York; BENETIO MYTON was wrongfully subject to similar charges after being
assaulted by P.O. ELEANOR WALSH and P.O. BRANDON RAVELO on or about March
30, 2010 at approximately 8:45 P.M., at or near the intersection of East 220th Street and
White Plains Road, Bronx, New York and a significant number of other similarly
situated individuals whom defendants are necessarily aware of by virtue of the claims,
causes of action and complaints brought against defendants in both state and federal
courts and through CITY OF NEW YORK agencies and departments.

34. That the CITY OF NEW YORK allowed, condoned, permitted and caused a
policy and procedure of arresting innocent citizens, almost exclusively citizens of a
racial minority under false pretenses, and in retribution for perceived disrespect and/
or for making prior complaints about abusive police behavior.

35. That no negligence or actions on the part of the plaintiffs contributed to the
occurrences alleged herein in any manner whatsoever.

36. The herein above described actions and omissions, engaged in under the color

of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiffs of rights secured by the Constitution and laws of the United States, including, but not limited to their First Amendment right of freedom of expression, Fourth Amendment right to be free from unlawful seizures of his person, Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

37. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

38. That as a result of the foregoing, the plaintiffs RUTH ROSAS, JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFFS RUTH ROSAS AND JORGE ROSAS

39. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 38 as though more fully set forth herein.

40. That on or about August 15, 2011, and within 90 days after the claims herein sued upon, plaintiffs RUTH ROSAS, JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO caused Notices of Claim, sworn to by or on behalf of the claimants, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO on June 1, 2012, and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based.

41. That defendant, in derogation of General Municipal Law §50h(5), refused or neglected to reschedule a hearing of plaintiff RUTH ROSAS.

42. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

43. That on or about May 18, 2011 at approximately 11 A.M., at 2071 Vyse Avenue, Bronx, New York, officers of the 48th Precinct wrongfully and forcefully entered apartment No. 3 thereof without proper authority, privilege or justification, having no reason in law or in fact to enter said premises.

44. That on or about May 18, 2011 at approximately 11 A.M., at 2071 Vyse Avenue, Bronx, New York, officers of the 48th Precinct wrongfully and forcefully detained RUTH ROSAS and JORGE ROSAS without proper authority, privilege or justification, having no reason in law or in fact to enter said premises.

45. That on May 18, 2011 at approximately 11 A.M officers of the 48th Precinct intended and did confine RUTH ROSAS and JORGE ROSAS.

46. That plaintiffs RUTH ROSAS and JORGE ROSAS were conscious of their confinement.

47. That plaintiffs RUTH ROSAS and JORGE ROSAS did not consent to their confinement.

48. That the confinement of the plaintiffs RUTH ROSAS and JORGE ROSAS was without warrant and was not otherwise privileged.

49. That during the confinement of RUTH ROSAS, the defendants utilized unreasonable, unnecessary, unjustified excessive force.

50. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

51. That as a result of the foregoing, the plaintiffs RUTH ROSAS and JORGE ROSAS, were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFFS JORGE ROSAS,
CHRISTINA ROSAS and BETSY CAMILO

52. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 51 as though more fully set forth herein.

53. That on or about June 6, 2011 at approximately 7 P.M., the 41st Precinct, 1035 Longwood Avenue, , Bronx, New York, the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO were improperly arrested, and confined without proper authority, privilege or justification, having no reason in law or in fact to arrest or confine JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO.

54. That at all times herein mentioned, defendants, their agents, servants and / or employees, deprived the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO of Due Process under Law.

55. That the defendants, their agents, servants and/or employees arrested and confined the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO without privilege or warrant and without any basis in law or fact and without reasonable, probable or just cause or justification.

56. That the defendants, their agents, servants and/or employees arrested the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

57. That the defendants, their agents, servants and/or employees unlawfully and without privilege arrested, intended to and detained, imprisoned and searched the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO and took their property without any basis in law or fact, and plaintiffs being aware of their unlawful confinement without their consent, were thereby caused freight, shock, emotional distress and physical consequences.

58. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO and took their property without any basis in law or fact, and plaintiffs being aware of their unlawful confinement, were thereby caused freight, shock, emotional distress and physical consequences.

59. That no negligence or actions on the part of the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO contributed to the occurrences alleged herein in any manner whatsoever.

60. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

61. That as a result of the foregoing, the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO were damaged in a sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFFS JORGE ROSAS,

CHRISTINA ROSAS and BETSY CAMILO

62. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 52 as though more fully set forth herein.

63. That on or about April 30, 2012, and within 90 days after the claims herein sued upon, plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO caused Notices of Claim, sworn to by or on behalf of the claimants, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notices of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted General Municipal Law §50h hearing of plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO on June 1, 2012, and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based.

64. That the defendants, their agents, servants and/or employees prosecuted criminal actions against the plaintiff JORGE ROSAS, CHRISTINA ROSAS and BETSY

CAMILO without any basis in law or fact and without a reasonable belief in the success of the prosecutions.

65. That the defendants, their agents, servants and/or employees continued to prosecute the criminal actions against the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO due to racism and prejudice and in retaliation for perceived disrespect and/or making prior complaints against officers of the 48th Precinct and without any basis in law or fact.

66. That the defendants P.O. FRANK LUCIA, P.O. AUSTIN DENIO, P.O. BRIAN CALORE, P.O. JOSEPH MURRAY and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal actions against plaintiffs thereby causing them to suffer an unlawful seizure of their persons and property.

67. That defendants, their agents, servants and/or employees continued to prosecute plaintiffs and deny and threaten their freedom after they knew, or should have known, they were innocent of all charges being alleged against him.

68. That all criminal charges brought against plaintiffs, which were brought under docket number 2011BX032052 for JORGE ROSAS, and 20011BX032053 for CHRISTINA ROSAS and 2011BX032051 for BETSY CAMILO in the Bronx Supreme Court, Criminal

Division, regarding the incidents of June 6, 2011, were dismissed by Hon. Nicholas J. Iacovetta, an Acting Justice of the Supreme Court, on April 4, 2012 and the criminal proceedings were terminated in plaintiffs' favor.

69. That by reason of the aforementioned, the defendants actions amounted to malicious prosecution.

70. As a result of the malicious prosecutions, plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO were deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and were otherwise damaged and injured. The plaintiffs made court appearances to defend their liberty against these unjust charges over a period of approximately ten months.

71. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

72. That as a result of the foregoing, the plaintiffs JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF RUTH ROSAS

73. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 72 as though more fully set forth herein.

74. That on or about May 18, 2011 at approximately 11 A.M., at 2071 Vyse Avenue, Bronx, New York, the plaintiff RUTH ROSAS was subjected to improper, unnecessary, unjustified and excessive force.

75. That the defendants, their agents, servants and/or employees utilized unnecessary, unjustified and excessive force against the plaintiff RUTH ROSAS without any basis in law or fact and without reasonable, probable or just cause or justification.

76. That no negligence or actions on the part of the plaintiff RUTH ROSAS contributed to the occurrences alleged herein in any manner whatsoever.

77. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

78. That as a result of the foregoing, the plaintiff RUTH ROSAS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF BETSY CAMILO

79. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 78 as though more fully set forth herein.

80. That on or about June 6, 2011 at approximately 7 P.M., at 2071 Vyse Avenue, Bronx, New York, the plaintiff BETSY CAMILO was subjected to improper, unnecessary, unjustified and excessive force.

81. That the defendants, their agents, servants and/or employees utilized unnecessary, unjustified and excessive force against the plaintiff BETSY CAMILO without any basis in law or fact and without reasonable, probable or just cause or justification.

82. That no negligence or actions on the part of the plaintiff BETSY CAMILO contributed to the occurrences alleged herein in any manner whatsoever.

83. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

84. That as a result of the foregoing, the plaintiff BETSY CAMILO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SEVETH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFFS RUTH ROSAS, JORGE ROSAS,

CHRISTINA ROSAS and BETSY CAMILO

85. That plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs enumerated 1 through 84 as though more fully set forth herein.

86. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

87. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrest of individuals, and in the utilization of excessive force.

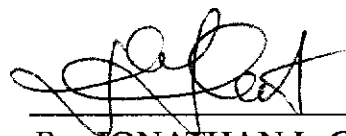
88. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiffs RUTH ROSAS, JORGE ROSAS, CHRISTINA ROSAS and BETSY CAMILO were denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiffs were made, still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiffs and for the purchase of drugs and

medicines, and that plaintiffs were and in the future will be prevented from attending to plaintiffs' usual vocations and avocations; all to the plaintiffs' damage in sums which exceed the jurisdiction of all lower Courts.

89. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third, Fourth, Fifth, Sixth and Seventh Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
July 12, 2012



By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiffs

RUTH ROSAS, JORGE ROSAS,
CHRISTINA ROSAS and BETSY CAMILO

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(718) 742-020

To:
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4th Floor, Law Dept. , New York, New York 10007

P.O. Frank Lucia, Shield 003932, P.O. Austin Denio, Shield 25069, P.O. Brian Calore, Shield 19204, P.O. Joseph Murray, Shield 006464
48th Precinct, 450 Cross Bronx Expressway, Bronx NY 10457

PLAINTIFF'S VERIFICATION

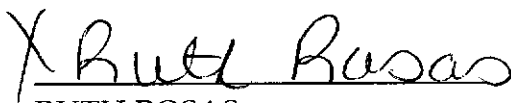
RUTH ROSAS affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


RUTH ROSAS

PLAINTIFF'S VERIFICATION

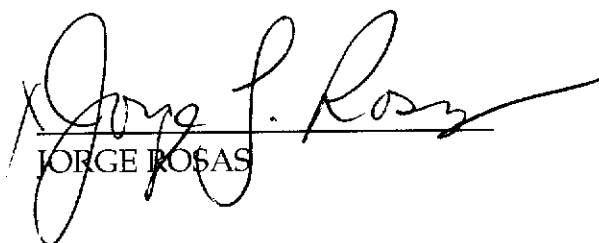
JORGE ROSAS affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


JORGE ROSAS

PLAINTIFF'S VERIFICATION

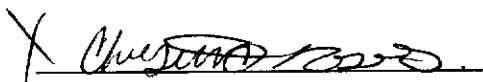
CHRISTINA ROSAS affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

X 
CHRISTINA ROSAS

PLAINTIFF'S VERIFICATION

BETSY CAMILO affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


BETSY CAMILO